

Applicable Law Acts

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User Query :

After a personal dispute, someone edited one of my photographs to make it appear intimate and circulated it through WhatsApp and social media without my permission. The person is also threatening to send the image to my employer and family unless I pay money. What legal provisions may apply to this situation?

Job Id. :

qwen3-30b/Scenario 4/Combined Act

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66E

— Punishment for violation of privacy

Only if the transmitted image is an image of a statutory 'private area' and the privacy conditions are met.

Section 67

— Punishment for publishing or transmitting obscene material in electronic form

Depends on whether the morphed image is legally obscene.

Section 67A

— Punishment for publishing or transmitting material containing sexually explicit act, etc., in electronic form

Depends on the actual content; an 'intimate-looking' image is not automatically sexually explicit within **section 67A** .

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The IT Act analysis should turn on the actual content of the morphed image. **Section 66E** is narrower than a general privacy offence and requires an image of a 'private area'. Sections 67/67A depend on obscenity or sexually explicit content.

✓ STRENGTHS & RIGHTS

1 The image was circulated electronically without permission.

✗ RISKS & OBLIGATIONS

1 Do not automatically label every morphed or embarrassing photo as **section 66E /67A**; inspect the statutory content elements.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1. Preserve the original and morphed versions, message chains, URLs/account identifiers and timestamps.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 308 — Extortion

Threatening further disclosure unless money is paid is the central extortion theory; if no payment has yet been made, attempt/putting in fear provisions within **section 308** are especially relevant.

Section 351 — Criminal intimidation

Threats to harm reputation/interests by sending the image to employer/family are capable of causing alarm or compelling payment.

Section 336 — Forgery

May apply if creation of the morphed image amounts to making a false electronic record with the required intent to cause injury or commit fraud.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The strongest BNS provisions are extortion and criminal intimidation. Forgery is secondary and depends on satisfying the statutory 'false document/electronic record' requirements.

✓ STRENGTHS & RIGHTS

- 1 The threat is expressly tied to a demand for money.

✗ RISKS & OBLIGATIONS

- 1
- Do not use unrelated sexual-harassment or invented BNS section numbers merely because the image is intimate.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- If payment was actually made, record that fact because the precise extortion subsection/charge may differ from an unsuccessful demand.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Messages and the circulated image are electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving the messages, image files and social-media/WhatsApp records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The BSA governs proof and authenticity of the electronic threats and image files.

✓ STRENGTHS & RIGHTS

- 1
- Original files and message threads may preserve metadata and context.

✗ RISKS & OBLIGATIONS

1

BSA does not itself criminalise extortion or image abuse.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Retain originals and, where possible, hashes/metadata of the files.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The facts describe individual image manipulation, circulation and extortion. They do not establish a Data Fiduciary processing violation on the stated facts.

✓ STRENGTHS & RIGHTS

- 1 Avoids forcing a privacy statute onto a primarily criminal interpersonal act.

✗ RISKS & OBLIGATIONS

- 1 Platform processing/disclosure facts could separately raise DPDP questions, but none are given.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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